

		be supported by invoices and should not include copies, postage, legal research, and other office overhead. Additionally, at the final approval hearing, plaintiff must provide a detailed declaration describing the circumstances to justify the requested enhancement award and addressing the factors set forth in <i>Golba v. Dick's Sporting Goods, Inc.</i> (2015) 238 Cal.App.4th 1251, 1272, and <i>Clark v. American Residential Services, LLC</i> (2009) 175 Cal.App.4th 785, 804. Plaintiff must provide an estimate of the hours spent participating in this litigation and the estimated amounts of her individual class and PAGA awards. Within five court days, counsel to submit a proposed order with exhibits attached that conforms in all aspects to the above. Plaintiff to give notice of this court's ruling, including to the LWDA, within five (5) court days, and file proof of service.
112	Gonzalez vs. Bear Down Brands, LLC 2023-01340515	Motion for Preliminary Approval of Class and PAGA Settlement Plaintiff Nicolas Gonzalez's Motion for Preliminary Approval of Class Action and PAGA Settlement is CONTINUED to July 23, 2026 at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 8/7/2023, Plaintiff Nicolas Gonzalez, individually and on behalf of all others similarly situated, filed a class action and PAGA complaint against Defendant Bear Down Brands, LLC, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #2.) Defendant answered on 11/8/2023. (ROA #13.) On 1/8/2026, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Class/PAGA Action Settlement Agreement ("Settlement Agreement") and Class Notice for the Court's review. The motion seeks preliminary approval of the parties' proposed settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$149,250. The GSA includes a credit of \$37,250 for money already paid by Defendant to individual <i>Pick Up Stix</i> Settled Class Members allegedly as a result of this action and \$12,500 allocated for PAGA penalties. The Court has identified several issues with the Settlement Agreement and moving papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted: 1. Plaintiff must provide a copy of his PAGA notice letter to the LWDA. 2. The moving papers do not provide sufficient information about Defendants' <i>Pick Up Stix</i> settlement payments—including but not limited to the dates of the settlement payments, how many Class Members were paid, how much was paid to each, or what type of release Defendant obtained in exchange—so as to allow the Court to properly evaluate the fairness, adequacy, and

		reasonableness of the terms of the instant Settlement Agreement, including the \$250 payments to <i>Pick Up Stix</i> Unsettled Class Members in the first instance before pro rata allocation of the remaining Net Settlement Amount among all Class Members. The moving papers also do not address whether the named Plaintiff received a <i>Pick Up Stix</i> settlement from Defendant. 3. The moving papers fail to provide the Class Members' and PAGA Aggrieved Employees' estimated individual recovery under the proposed settlement, including the estimated average, low, and high payments to be paid to Class Members and PAGA Aggrieved Employees. At a minimum, the average payments must be provided for preliminary approval, but if the high and low estimated payments are not available at this time, they must be provided in the motion for final approval. 4. The Settlement Agreement specifies that Class Members may opt out by mail but does not specify the method for submitting written objections and workweek/pay period disputes. Relatedly, the Class Notice states that workweek/pay period disputes may be submitted by mail, fax, or email, although the Settlement Agreement does not so specify. Nor does the Settlement Agreement specify how Class Members must submit their written objections to the administrator. Ultimately, Class Members should clearly have the option of submitting opt-outs, objections, and workweek/pay period disputes by mail, fax, and email. 5. The Settlement Agreement does not specify how the 60-day response deadline for opt-outs, objections, and workweek/pay period disputes will be calculated for remailed notices, but the proposed order states that the 60-day response deadline for opt-outs and workweek/pay period disputes is measured from either when the Class Notice is first mailed to the Class or remailed to the Class Member; however, the proposed order also states that for objections, the 60-day response deadline is measured only from when the Class notice is first mailed to the Class. Ultimately, the deadline for all responses to the Class Notice should be 60 days measured from either when the Class Notice is first mailed to the Class or when the Class Notice is remailed to the Class Member, whichever is later. 6. The Settlement Agreement should specify that the Court's continuing jurisdiction is pursuant to California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h). 7. Plaintiff's counsel must attest to whether there are any concurrent pending cases involving similar claims against Defendant that may be impacted by the settlement and how, or confirm that there is none. 8. The Class Notice is only in English. Class Counsel must address whether the notice will be translated into any other language, or confirm it will not be translated and explain why English only is appropriate. Class Counsel must also provide the Court with a revised Class Notice with the following revisions: 1. The notice should be revised so as to be consistent with the resolution of the issues identified above. 2. The pages should be numbered. 3. Overall, the Class Notice, including the Class Workweek Dispute Form, does not clearly and consistently explain that Class Members can dispute the number of workweeks, the number of pay periods, or both.
--	--	---

4. The following sentences on p. 1 should be bolded: “Your legal rights are affected whether you act or not act. Read this Notice carefully. You will be deemed to have carefully read and understood it.”
5. On p. 2, it is confusing to list only 2 options at first and then list 5 options immediately thereafter. These two sections should be combined into a single section that just identifies the 5 main options.
6. The notice on p. 3 states that Class Members cannot object to the PAGA settlement. This is incorrect, as they can object—they just cannot opt out.
7. The Class Notice should include a separate form for objections, just as it does for workweek/pay period disputes and opt-outs.
8. On p. 4, the notice includes a statement that “Plaintiffs and Class Counsel strongly believe the Settlement is a good deal for you” for various reasons. However, the Class Notice should “avoid any commentary on the merits of the settlement.” (Guidelines for Approval of Class Action Settlements & PAGA Settlements, ¶ I.C.35.)
9. Paragraph 3.3 of the notice states: “After making the above deductions in amounts approved by the Court, the Administrator will distribute the rest of the Gross Settlement (the ‘Net Settlement’) *according to the schedule outlined above* by making Individual Class Payments to Participating Class Members based on their Class Period Workweeks and whether they previously received payment from Defendant as part of an individual agreement between the applicable Participating Class Members and Defendant” (emphasis added). However, the detailed description of how the Administrator will calculate payments is set forth *below* in Section 4.
10. Section 7 of the notice may be interpreted as advising Class Members to wait to object until after Plaintiff has filed his final approval motions, which need not occur until 16 court days before the final approval hearing date and may therefore occur after Class Members’ deadline to send written objections. The notice should simply inform Class Members of the deadlines for Plaintiff’s filings in support of final approval as well as the final approval hearing date.
11. The URL provided in Section 7 for the Court’s website to access case documents is incorrect and does not work.
12. The Class Notice, including all forms, should clearly and consistently explain that opt-out requests, objections, and workweek/pay period disputes may be mailed, faxed, or emailed.
13. The notice should specify that the judgment, “whether favorable or not,” will be binding all Class Members who do not request exclusion. (CRC, rule 3.766(d)(4).)

Class Counsel must also provide a revised [Proposed] Order Granting Preliminary Approval with the following revisions:

1. The proposed order should be revised to incorporate the relevant revisions identified above, including attaching the revised Class Notice.
2. Attorney information must be deleted from the caption page.
3. The title of the document should add “and PAGA” between “Class Action” and “Settlement.”
4. The date for the preliminary approval hearing should be updated to reference the continued hearing date.

5. The proposed order should reference by name and ROA number all the declaration(s) to which the Settlement Agreement and any amendments thereto are attached.
6. All terms that require definition must either be defined in the proposed order itself or clearly incorporate by reference definitions found elsewhere in the record.
7. The proposed order should specify the amounts proposed to be allocated from the GSA to attorneys' fees, litigation costs, enhancement(s), administration costs, and PAGA penalties (including to the LWDA and to Aggrieved Employees).
8. The proposed order should also include the definitions for PAGA Aggrieved Employees and the PAGA Period.
9. The proposed order should specify the approval of ILYM Group, Inc. as the settlement administrator.
10. As noted above, although for opt-outs and workweek disputes, the proposed order granting preliminary approval states that the 60-day response deadline is measured from either when the Class Notice is first mailed to the Class or remailed to the Class Member, the proposed order noticeably changes this calculation for objections—it states that objections must be sent to the administrator “no later than 60 calendar days after the date the Class Notice is first mailed by the Settlement Administrator.” For those Class Members who receive remailed notices, objections should also be due “no later than 60 calendar days after the Class Notice is first mailed to the Class (or re-mailed to the Class Member).”
11. Counsel should not leave blank but should instead propose a realistic Final Approval hearing date, taking into account the deadlines associated with mailing and remailing the notice and responses thereto and the documentation required to support final approval (including but not limited to time records or a summary of time spent by Class Counsel so as to enable the Court to evaluate the lodestar and attorneys' fee request; detailed litigation cost breakdowns; an Administrator declaration and invoice; and Plaintiff's declaration to support the enhancement request). The Court usually sets these hearings at least 4 months after preliminary approval. All supporting papers must also be filed at least sixteen (16) court days before the Final Approval hearing date.
12. The following injunction should be removed from the preliminary approval order as it is premature at this stage of the proceedings: “IT IS FURTHER ORDERED that pending final determination of whether this proposed Settlement should be granted final approval, no member of the Class, either directly or representatively, or in any other capacity, shall commence or prosecute any action or proceeding asserting any of the Released Class Claims against the Released Parties, as defined in the Settlement Agreement.”
13. The proposed order should specify the Court's continuing jurisdiction pursuant to both California Code of Civil Procedure section 664.6 and California Rules of Court, rule 3.769(h).

The Court further refers Class Counsel to the “Guidelines for Approval of Class Action Settlements & PAGA Settlements” posted on the Court's website for Department CX102, available at <https://voypubapps.occourts.org/complex-civil-calendar>.

		Class Counsel must file supplemental papers addressing the Court’s concerns no later than sixteen (16) court days prior to the continued hearing date. Counsel must also provide redlined versions of all revised papers and an explanation of how the pending issues were resolved with precise citation to any revisions. A supplemental declaration or brief that simply asserts the issues have been resolved is insufficient and will result in a further continuance. Plaintiff is ordered to give notice of this Court’s ruling, including to the LWDA, within five (5) court days, and file proof of service.
113	Regalado Contreras vs. Inmar Supply Chain Solutions, LLC 2024-01444626	Motion for Preliminary Approval of Class and PAGA Settlement Plaintiff Mario Regalado Contreras’s Motion for Preliminary Approval of Class Action and PAGA Settlement is CONTINUED to July 23, 2026, at 2:00 p.m. in Department CX102 in order to give Class Counsel an opportunity to address the issues identified below. This is a putative wage-and-hour class action and PAGA matter. On 12/6/2024, Plaintiff Mario Regalado Contreras, individually and on behalf of all others similarly situated, filed a class action complaint against Defendant. (ROA #2.) On 2/10/2025, Plaintiff filed a first amended complaint to add a cause of action for PAGA penalties. (ROA #17.) The operative complaint is the second amended complaint, filed on 11/4/2025 pursuant to the parties’ stipulation and the Court’s order, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #73.) On 11/3/2025, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement, and submitted the Stipulation of Class and PAGA Settlement (“Settlement Agreement”) and Class Notice for the Court’s review. The motion seeks preliminary approval of the parties’ proposed settlement of Plaintiff’s class and PAGA claims for the non-reversionary gross settlement amount (GSA) of \$160,000. The GSA includes \$10,000 allocated for PAGA penalties. The Court has identified several issues with the Settlement Agreement and moving papers. Accordingly, the following issues must be addressed by Class Counsel before preliminary approval can be granted: 1. Class Members must have the option of submitting requests for exclusion, objections, and workweek disputes by fax and email in addition to by mail. 2. The deadline for responses to the Class Notice (i.e., opt outs, objections, and workweek disputes) after remailing is too short and should be at least 30 days after remailing.